

# FORMAL ETHICS COMPLAINT

**TO:** Minnesota Professional Educator Licensing and Standards Board (PELSB)

Attn: Ethics Committee

1000 E. Hennepin Ave., Suite 222

St. Paul, MN 55108

Email: [REDACTED]

**COMPLAINANT:** [REDACTED] (Minor Student)

**RESPONDENT:** Emily Herman, Title IX Coordinator / Licensed Educator, Prior Lake-Savage Area Schools (ISD 719)

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## I. INTRODUCTION

This is a formal ethics complaint filed against Emily Herman regarding severe violations of the Minnesota Code of Ethics for Teachers (Minnesota Rule 8710.2100). As the District's Title IX Coordinator, Ms. Herman holds a unique and profound responsibility to protect student victims of sexual harassment and assault. Instead, Ms. Herman utilized her professional position to systematically sabotage a victim's grievance process, falsify administrative records, and willfully suppress evidence to shield the District from liability.

## II. VIOLATIONS OF THE CODE OF ETHICS (MINN. RULE 8710.2100)

### Subp. 2, Item C: Failure to Protect Student Health and Safety

*"A teacher shall take reasonable action to protect the student from conditions harmful to health and safety."*

Ms. Herman oversaw the "constructive exclusion" of a minor student who had been the victim of a violent classroom assault. As documented in Exhibit 4, Ms. Herman—advised by external counsel—informed the parents that the District would only discuss or implement safety accommodations *after* the child returned to the unregulated environment where the assault occurred. By conditioning a student's safety on their exposure to further harm, Ms. Herman abandoned her ethical duty to protect the health and safety of the student.

### Subp. 2, Item I: Falsification and Misrepresentation of Facts

*"A teacher shall not knowingly falsify or misrepresent records or facts..."*

In the official Title IX Investigation Summary Report dated March 13, 2025, Ms. Herman knowingly misrepresented the Complainant's advocacy. The parents had requested that the student's interview be conducted by a trauma-informed, neutral third party (CornerHouse). Ms. Herman characterized this request as the parents "declining" to participate, using this falsified narrative to justify the summary dismissal of a Title IX complaint (Exhibit 3). This is a malicious

distortion of student data intended to deprive a victim of their civil rights.

## **Subp. 2, Item F: Suppression and Distortion of Evidence**

*"A teacher shall not deliberately suppress or distort subject matter."*

Ms. Herman engaged in the willful spoliation of evidence to conceal a data breach and an unauthorized forwarding anomaly (Exhibit 5). Between January and March 2025, Ms. Herman repeatedly denied the existence of Google Workspace Email Logs, claiming the District "has no further responsive data." On March 14, 2025, she abruptly produced the requested logs but **intentionally truncated the data** to begin on February 12, 2025—deliberately omitting the specific dates of the December 2024 unauthorized forwarding event. This targeted suppression of evidence is a severe breach of professional integrity.

## **Violation of Federal and State Mandates**

Ms. Herman willfully failed to provide the federally mandated notice of appeal rights following the dismissal of a Title IX claim. When formally notified of this failure, she refused to cure the error. A licensed educator serving in a Title IX capacity who knowingly omits due process rights and refuses to correct the record demonstrates a fundamental lack of the professional character required to hold a license in the State of Minnesota.

## **III. REQUESTED ACTION**

The Complainant respectfully requests that PELSB initiate a formal disciplinary investigation into the licensure of Emily Herman. Her actions in falsifying records, suppressing evidence, and engineering the exclusion of a student victim represent a vile betrayal of the trust placed in a Title IX Coordinator. Such conduct is incompatible with the standards of the teaching profession and warrants immediate and severe disciplinary action against her professional license.

**Respectfully Submitted,**

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# Itemized Redaction List

| Bates/Page                        | Line | Redaction reason                      |
|-----------------------------------|------|---------------------------------------|
| Sean_OBrien_2026-05-04_PELSB-p001 | 3    | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_PELSB-p001 | 5    | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_PELSB-p001 | 6    | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_PELSB-p002 | 24   | Redacted to protect personal privacy. |
| Sean_OBrien_2026-05-04_PELSB-p002 | 25   | Redacted to protect personal privacy. |